

No proposed order was submitted as required by Local Rule 5.17(D). Plaintiff is ordered to submit the proposed order.

LOGAN VS. GENERAL MOTORS, LLC

CASE NUMBER: 26CV-0211049

Tentative Ruling on Demurrer: General Motors LLC (“GM”) moves for an order sustaining GM’s Demurrer to the Third and Fourth Causes of Action of Plaintiff’s First Amended Complaint. Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Ryan Kay does not establish compliance with the meet and confer requirements. CCP 430.41(a)(4) provides that an insufficient meet and confer process shall not be grounds to overrule or sustain a demurrer. Therefore, the Court elects to reach the merits as it will not prejudice Plaintiff in this instance, rather than continuing the hearing to require meet and confer.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

GM demurs to Plaintiff’s Third Cause of Action for Fraudulent Concealment on the grounds that it fails to state facts sufficient to establish the cause of action and fails to allege the transactional relationship giving rise to a duty to disclose. GM also demurs to Plaintiff’s Fourth Cause of Action for violation of the Consumer Legal Remedies Act (CLRA) on the grounds that it fails to set forth facts sufficient to constitute a cause of action and that it is barred by Plaintiff’s failure to give proper notice. The First Amended Complaint filed July 29, 2026 is the operative pleading.

Third Cause of Action – Fraudulent Concealment

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact. (*Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 606 [172 Cal. Rptr. 3d 218]; see also CACI No. 1901.) A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as the plaintiff’s fiduciary or is in some other confidential relationship with the plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff (i.e., exclusive knowledge); (4) the

defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) the defendant actively conceals discovery of material fact from the plaintiff (i.e., active concealment).” *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.

Here, GM argues no duty exists because Plaintiff did not buy directly from GM. *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844, rejected the same argument where the plaintiffs alleged they bought from an authorized dealership, the manufacturer issued an express warranty, and its dealerships were its agents for sales. The Supreme Court later dismissed review in *Dhital* after deciding *Rattagan*. *Dhital* is therefore a published decision binding on this court. *Rattagan* did not address dealer sales or disapprove *Dhital*, and it listed the seller-buyer relationship among those that can give rise to a duty. The FAC alleges the same facts: Epic Chevrolet is GM-authorized, the vehicle was sold with GM's express written warranties, and GM markets to consumers and controls its dealers' sales. (FAC ¶¶ 6, 8-9, 82-88.) The Court also finds that the allegations are pled with the requisite heightened specificity necessary for a fraud cause of action. The demurrer is **OVERRULED**.

Fourth Cause of Action – Violation of Civil Code Section 1750 et seq. (Consumer Legal Remedies Act)

The CLRA provides that a defendant may be liable for “unfair methods of competition and unfair or deceptive acts or practices” in the “sale ... of goods” including “[r]epresenting that goods ... have ... characteristics ... which they do not have ...” or “[r]epresenting that goods ... are of a particular standard, quality, or grade ... if they are of another.” *Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1374.

Plaintiff's First Amended Complaint alleges that Defendant's conduct violated Civil Code Sections 1770(a)(7), 1770(a)(9), and 1770(a)(14) by representing the subject vehicle was of a particular quality, while knowing the transmission could not conform to the standard they were advertising, and could not be fixed. Defendant argues Plaintiff did not provide adequate notice of the CLRA claim pursuant to Civ. Code 1782. The Court finds that the 30-day notice defect was remedied by the notice provided with the original Complaint and the filing of the First Amended Complaint over 30 days thereafter. Defendant further argues that the claim is not pled with the required specificity. The Court finds that the FAC does plead specific acts supporting a violation, including that GM represented that the subject vehicle's transmission had world class performance, refined transfer of power, increased efficiency, etc. while knowing that the transmission was defective and not fixable. The cause of action states sufficient facts to constitute a cause of action. The demurrer is **OVERRULED**.

Defendant's Demurrer to Plaintiff's First Amended Complaint is **OVERRULED**. Defendant is ordered to submit a proposed order consistent with this ruling.

Tentative Ruling on Motion to Strike: General Motors LLC (“GM”) moves to strike the demand for punitive damages in the Prayer for Relief from Plaintiff's First Amended Complaint on the grounds that Plaintiff has not pled a viable fraud claim or any other cause of action that can support a punitive damages claim, and that such a claim is barred by GM's defenses. Plaintiff opposes the Motion to Strike.

Meet and Confer: CCP § 435.5 requires the demurring party to “meet and confer in person or by

telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Ryan Kay does not establish compliance with the meet and confer requirements. CCP 435.5(a)(4) provides that an insufficient meet and confer process shall not be grounds to grant or deny a motion to strike. Therefore, the Court elects to reach the merits as it will not prejudice Plaintiff in this instance, rather than continuing the hearing to require meet and confer.

Merits: A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. (Code Civ. Proc., § 437(a)).

Here, Defendant moves to strike punitive damages from the prayer for relief on the grounds that Plaintiff has not pled a viable fraud claim or any other cause of action that can support a punitive damages claim. Both parties refer to their briefing on the concurrently filed Demurrer, which is also on calendar today. As detailed in the Court’s tentative ruling on the Demurrer, the Court finds that Plaintiff has stated sufficient facts to constitute a cause of action for fraudulent concealment (Third Cause of Action) and for violation of the Consumer Legal Remedies Act, Civil Code section 1750 et seq. (Fourth Cause of Action). These two causes of action support a prayer for punitive damages.

Therefore, Defendant’s Motion to Strike is **DENIED**. Defendant is ordered to submit a proposed order consistent with this ruling.

LOZANO VS. COUNTY OF SHASTA
CASE NUMBER: 26CV-0210630

Tentative Ruling on Demurrer: Defendant County of Shasta demurs to the Plaintiff’s “Second Amended Complaint” filed July 13, 2026 on the grounds that it fails to allege facts sufficient to constitute a cause of action against Defendant pursuant to CCP 430.10(e). Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Renee Belcastro establishes compliance with the meet and confer requirements.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff